

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Frank Montgoris	Team: Squad #07	CCRB Case #: 201707004	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 08/25/2017 6:15 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/25/2019	Precinct: 120
Date/Time CV Reported Fri, 08/25/2017 8:44 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/25/2017 8:44 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Daniel Golat	3482	950506	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Jonathan Kalman	5798	945865	GANG SI

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Daniel Golat	Abuse: Detective Daniel Golat entered § 87(2)(b) in Staten Island.	A . Complainant Uncooperative
B . DT3 Daniel Golat	Force: Detective Daniel Golat used physical force against § 87(2)(b)	B . Alleged Victim Uncooperative
C . DT3 Daniel Golat	Force: Detective Daniel Golat used a chokehold against § 87(2)(b)	C . Alleged Victim Uncooperative

Case Summary

On August 25, 2017, § 87(2)(b) filed this complaint with the CCRB via phone on behalf of herself and her § 87(2)(b) son, § 87(2)(b).

Between August 28, 2017 and September 26, 2017, a total of nine calls were placed to § 87(2)(b)'s cell phone number, which was confirmed by both § 87(2)(b) and § 87(2)(b) as the only working phone number for both individuals.

§ 87(2)(b) scheduled an appointment for August 30, 2017, which she subsequently missed without calling ahead to cancel or reschedule. Following her missed appointment, a total of eight calls were placed to § 87(2)(b) between August 31, 2017 and September 26, 2017, resulting in six voicemails, and one conversation in which she scheduled a field interview in Staten Island for September 20, 2017, which she later rescheduled to September 25, 2017. One attempt to reach § 87(2)(b) resulted in the caller abruptly disengaging the phone call upon answering. § 87(2)(b) failed to appear at her scheduled field interview, and upon text messaging her from the agreed upon meeting place, § 87(2)(b) replied that she was at work and would need to reschedule. Throughout the investigation, two letters, two e-mails, and three automated text messages were sent to § 87(2)(b) none of which were returned as undeliverable. § 87(2)(b) did not respond to the CCRB's attempts to reach her via phone or e-mail following her missed field interview.

Contact was established with § 87(2)(b) during the first phone call to § 87(2)(b)'s phone number on August 28, 2017, and he scheduled an in-person statement for August 30, 2017. However, he missed this appointment without calling ahead to cancel or reschedule. As previously stated, a total of nine calls and six voicemails were left on § 87(2)(b)'s cell phone, the confirmed best number to reach him, eight of which were placed following § 87(2)(b)'s missed appointment. However, contact was never re-established with § 87(2)(b) as contact with § 87(2)(b) occurred at times she was not with § 87(2)(b). Throughout the investigation, four letters were sent to § 87(2)(b) none of which were returned as undeliverable. Additionally, § 87(2)(b) denied having an e-mail address, and text messages were not sent because he did not have his own personal cell phone. As of the writing of this report, § 87(2)(b) has not contacted the CCRB in an attempt to reschedule his in-person statement. Searches of the New York City and New York State Department of Correction websites indicated that neither § 87(2)(b) nor § 87(2)(b) is incarcerated.

Fieldwork was conducted for this case, which yielded security cameras inside of § 87(2)(b), but the system was non-functional at the time of the fieldwork. Multiple phone calls to the business establishment, including one after the fieldwork, were ultimately unsuccessful. Therefore, video footage for this case could not be obtained.

§ 87(2)(g)
it is recommended that **allegation A** be closed as **complainant uncooperative**, and **allegations B and C** be closed as **victim uncooperative**.

Squad: 7

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

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Reviewer: _____
Title/Signature Print Date